

documents within ten (10) days from the date of this order. Plaintiff and/or her counsel of record, Flavio Cajina, are ordered to pay sanctions in the amount of \$1,000 to Accor pursuant to Cal. Code Civ. Proc. § 2025.450(g)(1), payable within ten (10) days of this order. The proposed order lodged on August 29, 2025, is approved and will be executed.

21. 9:01 AM CASE NUMBER: C22-01951

CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT JOHN MUIR HEALTH'S FORM INTERROGATORIES, SET THREE**

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

Summary

This tentative ruling is issued for Lines 21, 22 and 23. Defendant John Muir ("Defendant") filed the following discovery Motions against Plaintiff Dianna Jiminian ("Plaintiff"):

1. Motion to Compel Further Responses to Form Interrogatories, Set. 2, filed October 13, 2025
2. Motion to Compel Further Responses to Request for Admissions, Set 2, filed October 14, 2025
3. Motion to Compel Further Responses to Defendant's Form Interrogatories, Set 3, filed October 15, 2025

The hearing on these motions were scheduled to be heard in March. The Court advanced the hearing of these Motion to December 17, 2025 in preparation for the trial of this matter, the first phase of which is scheduled for January 12, 2025. The Court rules on each of these motions as set forth below.

Background

- On September 21, 2022, Plaintiff, filed the operative Complaint, in which she alleges she slipped and fell while working as a traveling nurse at Defendant John Muir Health, in Concord, California.
- On July 16, 2025, Defendant served Form Interrogatories, Set Two, and Requests for Admissions, Set Two via electronic service on Plaintiff. On August 19, 2025, Plaintiff served responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On August 20, 2025, counsel for Defendant sent meet and confer correspondence to Plaintiff regarding insufficient and non-code compliant responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On August 20, 2025 Defendant served Form Interrogatories, Set Three and Requests for Admission, Set Three.
- On August 29, 2025, Plaintiff served amended responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On September 11, 2025, counsel for Defendant sent another meet and confer correspondence to Plaintiff regarding continued insufficient and non-code compliant responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- According to Defendant, Plaintiff refused to issue amended responses. Accordingly, defense

counsel filed motions to compel further responses to Form Interrogatories, Set Two and Requests for Admissions, Set Two on October 13, 2025. These motions was set by the court on March 4, 2026.

- On October 14, 2025, Plaintiff served responses to Form Interrogatories, Set Three and Requests for Admission, Set Three. Defendant contends that the responses consisted of meritless objections.
- On October 22, 2025, defense counsel sent detailed meet-and-confer letters identifying the deficiencies and requesting amended responses within ten days. Defendant claims that Plaintiff did not respond in any way to defense counsel's meet and confer efforts, accordingly, defense counsel filed motions to compel further responses to Form Interrogatories, Set Three and Requests for Admissions, Set Three on November 3, 2025. The hearing for these motions was also set by the court on March 4, 2026.
- Defendant seeks sanctions for each of the Motions.
- Plaintiff filed timely oppositions to each of the foregoing Motions, claiming that Plaintiff has fully responded to each of the discovery requests, and denying the claim for sanctions. The Court has reviewed the oppositions.
- Defendant filed reply briefs on December 10, 2025, which the Court has reviewed.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act (Code Civ. Proc. §§ 2016.010–2036.050). The Act provides litigants with the right to broad discovery (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402). Under Code Civ. Proc. § 2017.010, any party may obtain discovery regarding any non-privileged matter relevant to the subject matter of the action or to the determination of any motion, provided the matter is admissible in evidence or reasonably calculated to lead to the discovery of admissible evidence (see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402). The Court may limit discovery where the burden, expense, or intrusiveness outweighs the likelihood that the information sought will lead to admissible evidence (Code Civ. Proc. § 2017.020(a)).

Duty to Meet and Confer

Parties to a discovery dispute must meet and confer in good faith to informally resolve the dispute (Cal. Code Civ. Proc. §§ 2016.040, 2030.300; *Golf & Tennis Pro Shop, Inc. v. Sup. Ct. (Frye)* (2022) 84 Cal.App.5th 127, 138). The Contra Costa County Superior Court Local Rules also require meet-and-confer efforts (L.R. 2.121(e)) and mandate that motions be filed sparingly and in good faith (L.R. 2.122(c)). Here, the record shows that Counsel met and conferred before these motions were filed.

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Request for Admissions

The response to a request for admission must be “as complete and straightforward as the information reasonably available to the responding party permits.” CCP §2033.220(a). The section also imposes a duty of “reasonable inquiry.” CCP §2033.220(c). This means that the responding party must seek information beyond their personal knowledge and inquire of sources of information within their reach, custody, or control. At a minimum, the response should reflect all the information reasonably available to a party, including that in the possession of the party’s attorney or designated expert (unless privileged). See *Chodos v Superior Court* (1963) 215 CA2d 318, 322.

The answer to a Request for Admission may be phrased as a denial of the entire request or of the part of the request that is untrue. See CCP §2033.220(b)(2). Like an admission, a denial must be as complete and straightforward as the information available to the responding party permits. CCP §2033.220(a). However, if the party knows that the fact that it is requested to admit is true, a denial should not be made. The requesting party may later recover the expense, including attorney fees, incurred in proving the denied fact (or the denied genuineness of a document) if the denial is later found by the court to have been unjustified. Counsel should be aware that the cost-of-proof sanction is not usually sought. Nevertheless, a court can award sanctions under CCP §2033.420 even after granting a summary judgment motion, if the court determines that the legal issues were “proved” as part of the summary judgment motion. *Barnett v Penske Truck Leasing Co.* (2001) 90 CA4th 494, 498.

If the responding party gives lack of information or knowledge as a reason for failing to admit all or part of a request for admission, the party must state in the answer that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” CCP §2033.220(c). A general objection that a party has not “completed its investigation of the facts” and that the responses were prepared “on the basis of information presently available to and located ... upon reasonable investigation” does not prevent a specific admission from being conclusively established against the answering party, unless the party moves to withdraw or amend the admission. *Joyce v Ford Motor Co.* (2011) 198 CA4th 1478, 1489

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

Defendant’s Motion to Compel Further Responses to Form Interrogatories, Set. 2:

Interrogatory No. 17.1: RFA 4-7, and 10-22: Granted in part. Denied in part. Plaintiff’s objections are overruled. Plaintiff does not state facts that support her denial of the request for admissions. She, instead, makes blanket objections that do not apply and does not make a meaningful effort to meet and confer. Plaintiff also fails to answer the sub-parts of interrogatories that identify the names and addresses of people who have knowledge of the facts and the documents that support her response. To the extent that she identifies John Muir doctors and employees that are responsive to this request, she is required to list them by name. Plaintiff shall provide further code-compliant responses to

address each sub-part of this interrogatory.

Interrogatory No. 17.1: 24-32: Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff does not state facts that support her denial of the request for admissions. She, instead, makes blanket objections that do not apply and does not make a meaningful effort to meet and confer. Plaintiff also fails to answer the sub-parts of interrogatories that identify the names and addresses of people who have knowledge of the facts and the documents that support her response. To the extent that she identifies John Muir doctors and employees that are responsive to this request, she is required to list them by name. Plaintiff shall provide further code-compliant responses to address each sub-part of this interrogatory.

Defendant's Motion to Compel Further Responses to Request for Admissions, Set 2:

RFA Nos. 5, 7, 8, 9, : Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response indicating that she lacks information and cannot admit or deny the requests. Such response complies with CCP §2033.220(c).

RFA Nos. 24, 25, 26, 27, 28, 29, 30, 31, 32: Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response to the request for admission.

Defendant's Motion to Compel Further Responses to Interrogatories, Set 3

Interrogatory No. 17.1: RFA 32-35, 37, 39-48, 87-100: Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff does not state facts that support her denial of the request for admissions. She, instead, makes blanket objections that do not apply and does not make a meaningful effort to meet and confer. Plaintiff also fails to answer the sub-parts of interrogatories that identify the names and addresses of people who have knowledge of the facts and the documents that support her response. To the extent that she identifies John Muir doctors and employees that are responsive to this request, she is required to list them by name. Plaintiff shall provide further code-compliant responses to address each sub-part of this interrogatory.

Defendant's Motion to Compel Further Responses to Request for Admission Set 3:

RFA Nos. 33, 34, 35, 36, 37, 39, 40, 41, 42, 43, 44, 45, 46, 47, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, : Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response indicating that she lacks information and cannot admit or deny the requests. Such response complies with CCP §2033.220(c).

RFA Nos. 32. Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response to the request for admission.

Sanctions are denied. The Court finds that neither party misused the discovery process. Each party shall bear their own attorney's fees and costs in prosecuting and defending this motion.

Time of Production: Plaintiff is ordered to produce further responses, without objections, per the above no later than ten (10) days from the date of being served with an order after hearing. Defendant is ordered to prepare and e-file a proposed order conforming to this tentative ruling, attaching this tentative ruling as an exhibit.